

Chapter 1 — Authority, Scope, Principles, and Governance Roles

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1. Purpose

Define institutional governance without expanding constitutional authority.

2. Scope

This chapter governs all decisions, all governance, all roles, consequential decisions. It defines institutional procedure and does not create constitutional, technical, operational, or security authority.

3. Authority and source requirements

Book I Articles I-XII, Constitutional Governance, Decisions 47-49 and 58; Books II-III; Book X. Book I prevails. Final Books V and VI retain their operational and security/privacy/trust execution authorities; Book VII supplies institutional governance only.

4. Definitions and roles

Primary accountable roles: Governance Recorder, Constitutional Steward, Governance Chair, Governance Secretary, Decision Sponsor. Authority means explicit bounded permission to decide; expertise and administrative access do not create it.

5. Normative controls

GOV-01-001 — Preserve the hierarchy

Every governance decision **MUST** identify the controlling source and **MUST** yield to Book I, then Book II, and the applicable subordinate canon.

- Applicability: all governance
- Responsible role: Governance Recorder
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Decision Record
- Severity: Critical
- Exception authority: none

GOV-01-002 — Keep Owner authority unique

A governance body, steward, administrator, certificate, vote, emergency role, or delegated role **MUST NOT** become or dilute the single constitutional Owner.

- Applicability: all governance
- Responsible role: Constitutional Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Authority Review
- Severity: Critical

- Exception authority: none

GOV-01-003 — Govern systems, not people

Governance MUST regulate HAL institutions, artifacts, roles, risks, and actions and MUST NOT claim general authority over people.

- Applicability: all governance
- Responsible role: Governance Chair
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Scope Assessment
- Severity: Critical
- Exception authority: none

GOV-01-004 — Define bounded roles

Every governance role MUST have purpose, powers, prohibitions, appointment source, competence, term, conflicts, delegation limits, removal, succession, and records.

- Applicability: all roles
- Responsible role: Governance Secretary
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Role Charter
- Severity: High
- Exception authority: Owner or appointing authority

GOV-01-005 — Separate recommendation and decision

Advisors and technical reviewers MUST distinguish recommendations from binding decisions and MUST identify the actual decision authority.

- Applicability: all decisions
- Responsible role: Decision Sponsor
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Decision Record
- Severity: High
- Exception authority: Governance Chair

GOV-01-006 — Prohibit authority inference

Relationship, expertise, tenure, access, credential, trust, urgency, or operational control MUST NOT imply governance Authority.

- Applicability: all roles
- Responsible role: Constitutional Steward
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Authority-Path Test
- Severity: Critical
- Exception authority: none

GOV-01-007 — Record affected parties

Consequential governance MUST identify affected people, components, domains, rights, duties, notice, participation, and remedy.

- Applicability: consequential decisions
- Responsible role: Decision Sponsor
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Stakeholder Record
- Severity: High
- Exception authority: Governance Chair

GOV-01-008 — Apply proportional governance

Process burden MUST scale with consequence, irreversibility, uncertainty, trust boundary, privacy, safety, continuity, and constitutional significance.

- Applicability: all decisions
- Responsible role: Governance Chair
- Enforcement: workflow gate, register validation, and independent review
- Required evidence: Proportionality Assessment
- Severity: High
- Exception authority: Governance Chair

6. Required procedure

The proposer MUST submit the classified proposal and evidence. The recorder MUST verify authority and conflicts. Required independent reviewers MUST issue findings. The controlling authority MUST decide exact scope and conditions. The recorder MUST publish authoritative status, retain evidence, schedule review and sunset, propagate effects, and preserve appeal rights.

7. Prohibited practices

Off-record decisions, authority inference, self-approval, hidden conflicts, silent precedent, selective evidence, indefinite emergency power, permanent exceptions, and retroactive record alteration are prohibited.

8. Evidence, publication, and retention

The package MUST preserve proposal, sources, authority, conflicts, evidence, alternatives, affected parties, deliberation, dissent, decision, conditions, effective state, propagation, review, sunset, appeal, supersession, classification, access, and retention.

9. Exceptions, failure consequences, and appeals

A failed Critical control blocks the decision or suspends its effect. A High failure requires correction or a valid expiring exception. Appeals use Chapter 12. No exception can waive Book I or manufacture Owner authority.

10. Security, privacy, reliability, and continuity

Governance records MUST be integrity-protected, least-privilege, purpose-bound, minimized, available for authorized review, recoverable, and resistant to compromised identities or record systems.

11. Verification and metrics

Verify authority paths, role separation, record completeness, evidence integrity, propagation, expiry, appeal, and source traceability. Measure reversals, calibration, escaped harms, exception age, burden, remedy, and decision latency.

12. Traceability, examples, review, and status

- Source basis: Book I Articles I-XII, Constitutional Governance, Decisions 47-49 and 58; Books II-III; Book X.
- Book V reconciliation: `planning/BOOK\_V\_RECONCILIATION\_REGISTER.md`.
- Book VI reconciliation: `planning/BOOK\_VI\_RECONCILIATION\_REGISTER.md`.

Example: a committee recommends a risk response, but the record names the authorized Risk Owner as approver, preserves dissent, sets expiry, and triggers certification impact review.

Anti-pattern: an urgent meeting labels a policy “temporary,” grants indefinite power to its chair, omits conflicts, and treats silence as Owner approval.

Chapter review: PASS. Owner Review items: none created by this chapter. Completion status: CERTIFIED FINAL.